

STRIVE PULSE

FOUNDERS' AGREEMENT

Governing the Company and all present and future products, ventures and lines of business undertaken under it
Effective Date: As of the date of execution by all Founders (see signature page)

THIS FOUNDERS' AGREEMENT ("Agreement") is made and entered into on the Effective Date stated above,

BY AND AMONG:

- Prajapati Yash Jayeshbhai, ("Yash");
- Dhruvkumar Hemantbhai Chunawala, ("Dhruv"); and
- Niralikumari Ramanbhai Patel, ("Nirali"),

(each a "Founder" and collectively the "Founders"), in connection with Strive Pulse Pvt. Ltd., a private limited company proposed to be incorporated under the Companies Act, 2013, with its registered office in Surat, Gujarat, India (the "Company"). As of the date of this Agreement, the Company has not yet been incorporated.

Recitals

WHEREAS, as of the Effective Date, the Company has not yet been incorporated and no application for its incorporation has yet been finally registered with the Registrar of Companies;

WHEREAS, the Founders intend to commence work on the Company's products and business before such incorporation is complete and accordingly enter into this Agreement at this pre-incorporation stage specifically to record their binding mutual understanding and to avoid any dispute that might otherwise arise between them in the absence of a written agreement during this period;

WHEREAS, the Founders intend to jointly establish, own and operate the Company as a technology enterprise, for the purpose of developing, launching and commercializing one or more software products and technology ventures under the Company, from time to time, as the Founders may determine;

WHEREAS, the Founders intend that this Agreement shall govern their relationship in respect of the Company as a whole, including its ownership, governance and the disposition of intellectual property and shall not be limited to or construed with reference to, any single product or venture undertaken by the Company;

WHEREAS, the Founders wish to record their respective roles, equity ownership, vesting arrangements and decision-making authority in respect of the Company;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and intending to be legally bound, the Founders agree as follows:

1. Definitions

- “Company” means Strive Pulse Pvt. Ltd., a private limited company proposed to be incorporated under the Companies Act, 2013, with its registered office in Surat, Gujarat, India.
- As of the Effective Date, the Company has not yet been incorporated; until incorporation, “Company” refers to the unincorporated joint venture carried on by the Founders under that name and thereafter to the incorporated entity and any successor to it.
- “Company” shall include every product, service or venture developed or operated under it, whether now existing or hereafter undertaken.
- “Effective Date” means the date on which this Agreement is executed by the last of the Founders to sign it, as recorded on the signature page. Where the Founders sign on different dates, the Effective Date is the later of those dates.
- “Equity” means the fully diluted equity share capital of the Company.
- “Good Leaver” and “Bad Leaver” have the meanings given in Section 10.

2. Purpose and Scope

This Agreement governs the Founders' relationship with respect to the Company as a whole, including its Equity, governance and intellectual property. This Agreement is not limited to and shall not be construed as applying only to, any single product, application or venture developed by the Company. Any product, pivot or additional line of business undertaken by the Company shall be governed by this Agreement, unless the Founders unanimously agree otherwise in writing.

3. Continuity Notwithstanding Change of Name

This Agreement and all rights, obligations and authority granted under it, shall continue to bind the Founders and govern the Company regardless of any change to the Company's registered or trading name, whether from “Strive Pulse” to any other name the Founders may subsequently adopt. Following any such change, every reference in this Agreement to “the Company” or “Strive Pulse” shall be read as referring to the Company under its then-current name. No change of name shall, by itself, affect the validity, interpretation or enforceability of this Agreement or of any right or authority granted under it.

4. Roles and Responsibilities

The Founders' day-to-day responsibilities are divided by domain as set out below. This division reflects working responsibility only and shall not be construed to limit any Founder's rights as a holder of Equity.

- Yash shall be responsible for product strategy, backend and systems architecture, technical execution and lead generation, across all products and ventures of the Company.
- Dhruv shall be responsible for application development, across web and mobile platforms and technical implementation of the Company's products.
- Nirali shall be responsible for market and feature research, sales and institutional or client relationship management, on a part-time advisory basis.

The Founders may, by mutual written agreement, revise the foregoing role definitions as the Company's business evolves.

5. Equity Ownership

The Founders agree to the following initial allocation of Equity, applicable to the Company as a whole and not to any individual product or venture:

Founder	Role	Equity	Status
Prajapati Yash Jayeshbhai	Founder - Product & Technology (Backend & Architecture), Lead Generation	55%	Founder
Dhruvkumar Hemantbhai Chunawala	Co-Founder - Application Development	20%	Founder
Niralikumari Ramanbhai Patel	Co-Founder - Advisory & Sales (Part-Time)	10%	Founder
Employee Stock Option Pool	Reserved - future employees, advisors or investors	15%	Unallocated

The Employee Stock Option Pool shall be held by the Company, unallocated, for future issuance to employees, advisors or in connection with an institutional funding round. Allocation from the Employee Stock Option Pool shall require the unanimous consent of the Founders under Section 7.2.

Up to 32% of the Employee Stock Option Pool shall be earmarked for performance-based allocation to employees or contributors who demonstrate significant contribution to the Company, subject to unanimous Founder approval under Section 7.2.

6. Vesting

All Equity referred to in Section 5 shall be subject to vesting as set out below, calculated with reference to each Founder's total Equity allocation and commencing on the Effective Date, regardless of the date on which the Company is formally incorporated.

Founder	Immediate Vesting	Remaining Vesting	Cliff
Yash	25% of his Equity vests on the Effective Date	Remaining 75% vests monthly in equal installments over 24 months	None
Dhruv	Nil - standard schedule	25% vests on the first anniversary; remaining 75% vests monthly over the following 36 months	12 months
Nirali	Nil - standard schedule	25% vests on the first anniversary; remaining 75% vests monthly over the following 36 months	12 months

Where a Founder's engagement with the Company ceases prior to full vesting, the unvested portion of that Founder's Equity shall be treated in accordance with Section 10 and shall return to the Employee Stock Option Pool.

7. Decision-Making Authority

7.1 Domain Decisions

Each Founder shall have working authority to make day-to-day operational decisions within their respective domain, as set out in Section 4, provided that all such decisions shall require the prior approval of Yash before final execution.

7.2 Major Decisions

The following decisions, whether relating to the Company generally or to any specific product or venture undertaken by it, shall require the unanimous written consent of all Founders:

- Raising external funding, whether by equity, debt or convertible instrument;
- Admitting a new co-founder or altering the Equity allocation set out in Section 5;
- The terms of formal incorporation, including the Company's share structure and constitutional documents;
- Entering into any exclusive, long-term or materially binding contract on behalf of the Company;
- Allocating Equity from the Employee Stock Option Pool; and
- The dissolution or winding up of the Company.

8. Intellectual Property

All code, designs, product concepts, business plans, trademarks, content and other work product created by any Founder in connection with the Company - including in connection with any product or venture undertaken by the Company, whether before or after its formal incorporation - shall be and remain the exclusive property of the Company. Each Founder agrees to execute such documents as may reasonably be required to formally assign such intellectual property to the Company upon its incorporation.

9. Confidentiality

Each Founder shall keep confidential all non-public information relating to the business, technology, financial affairs and strategy of the Company and of any product or venture undertaken by it, both during their involvement with the Company and following their departure from it, save as required by law or with the prior written consent of the other Founders.

10. Leaver Provisions

10.1 Good Leaver

A Founder who departs the Company by reason of death, permanent disability or by mutual written agreement of the remaining Founders shall be treated as a "Good Leaver." A Good Leaver shall retain all Equity vested as of the date of departure. Any unvested Equity shall return to the Employee Stock Option Pool.

10.2 Bad Leaver

A Founder who voluntarily resigns without cause, is removed for material breach of this Agreement or commences a directly competing venture, shall be treated as a “Bad Leaver.” A Bad Leaver's unvested Equity shall be forfeited and shall return to the Employee Stock Option Pool. The Company and/or the remaining Founders shall have the right, but not the obligation, to repurchase the Bad Leaver's vested Equity at the lower of (a) its fair market value as reasonably determined at the relevant time or (b) its original issue price.

11. Dispute Resolution

The Founders agree to attempt, in the first instance, to resolve any dispute arising out of or in connection with this Agreement through good-faith direct discussion. If any such dispute remains unresolved after thirty (30) days, it shall be referred to mediation and if mediation fails, to arbitration under the Arbitration and Conciliation Act, 1996, with the seat of arbitration at Surat, Gujarat.

12. Execution, Effective Date and Future Formalization

This Agreement becomes effective and binds the Founders in full, on the Effective Date - that is, the date on which it is executed by the last Founder to sign it below - regardless of any other date referenced elsewhere in this Agreement or in any earlier draft of it. This Agreement is intended to bind the Founders immediately and completely from the Effective Date, notwithstanding that it is executed prior to the formal incorporation of the Company.

The Founders acknowledge that, as of the Effective Date, the Company has not yet been incorporated and that the Founders are commencing work on the Company's products and business before incorporation is complete. This Agreement is entered into specifically to govern that pre-incorporation period and to prevent disputes between the Founders that might otherwise arise in the absence of a binding written agreement and it shall be fully enforceable between the Founders on that basis notwithstanding the Company's unincorporated status.

This Agreement is an interim agreement between the Founders. Upon incorporation of the Company, the Founders agree to promptly execute a formal, duly stamped Shareholders' Agreement and Articles of Association consistent with the terms of this Agreement, which shall thereupon supersede this Agreement. Until such formal agreement is executed, this Agreement shall remain fully binding and shall be the operative agreement between the Founders. Save as aforesaid, this Agreement may be amended only by the unanimous written consent of all Founders.

13. Governing Law

This Agreement shall be governed by the laws of India. Subject to Section 11, the courts at Surat, Gujarat shall have exclusive jurisdiction in respect of any matter arising out of or in connection with this Agreement.

14. Miscellaneous

- Entire Agreement: This Agreement constitutes the entire understanding among the Founders in respect of its subject matter and supersedes all prior discussions or understandings, whether written or oral.
- Severability: If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- Notices: Any notice required under this Agreement shall be given in writing to each Founder at the address or email last notified to the other Founders.

*** End of Agreement ***

CONFIDENTIAL

In Witness Whereof

The Founders have executed this Agreement by signing below. As set out in Section 1 and Section 12, this Agreement takes effect from the date of the last signature affixed below, which shall be the Effective Date for all purposes of this Agreement, including the vesting schedule in Section 6.

Prajapati Yash Jayeshbhai

Date:

Dhruvkumar Hemantbhai Chunawala

Date:

Niralikumari Ramanbhai Patel

Date:

This Agreement was prepared to record the Founders' mutual intent and is not a substitute for review by a qualified company secretary or corporate lawyer, particularly ahead of formal incorporation and any future fundraising.